

Navigability

A body of water, such as a river, canal or lake, is **navigable** if it is deep, wide and slow enough for a vessel to pass or walk. Preferably there are few obstructions such as rocks or trees to avoid. Bridges must have sufficient clearance. High water speed may make a channel unnavigable. Waters may be unnavigable because of ice, particularly in winter. Navigability depends on context: A small river may be navigable by smaller craft, such as a motorboat or a kayak, but unnavigable by a cruise ship. Shallow rivers may be made navigable by the installation of locks that increase and regulate water depth, or by dredging.



Navigation markers, entrance of Fremantle harbour and the Swan River, Western Australia

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Inland water transport systems

Inland Water Transport (**IWT**) Systems have been used for centuries in countries including India, China, Egypt, the Netherlands, the United States, Germany, and Bangladesh. In the Netherlands, IWT handles 46% of the nation's inland freight; 32% in Bangladesh, 14% in the United States, and 9% in China.

In the United States

What constitutes 'navigable' waters can not be separated from the context in which the question is asked. Numerous federal agencies define jurisdiction based on navigable waters, including admiralty jurisdiction, pollution control, to the licensing of dams, and even property boundaries. The numerous definitions and jurisdictional statutes have created an array of case law specific to which context the question of navigability arises. Some of the most commonly discussed definitions are listed here.

Navigable waters, as defined by the US Army Corps of Engineers as codified under 33 CFR 329, are those waters that are subject to the ebb and flow of the tide, and those inland waters that are presently used, or have been used in the past, or may be susceptible for use to transport interstate or foreign commerce while the waterway is in its ordinary condition at the time of statehood. Section 10 of the *Rivers and Harbors Act of 1899* (33 U.S.C. 403), approved 3 March 1899,